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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
PHILLIPS, SPALLAS & ANGSTADT LLP;
PRIYA D. NAVARATNASINGHAM;
ALBERTO REYNA;
MICHAEL R. CHAMBERS;
CARBONE, SMITH & KOYAMA;
and DOES 1 through 50, inclusive;

DEFENDANTS

Case No.: CGC-25-631801

**REQUEST FOR JUDICIAL NOTICE IN
SUPPORT OF OPPOSITIONS**

Date:
Time:
Dept.:
Judge:
Reservation No.:

May 12, 2026
9:00 a.m.
301

I. INTRODUCTION

This Request for Judicial Notice is grounded in the certified record of a fraud perpetrated upon this Court. At the heart of this action is a sequence of events where defense counsel, acting as officers of the court, procured a series of structural rulings against Plaintiff by representing that they had never received critical evidence—representations that the record now proves were false.

§I.A — The “Smoking-Gun” Preamble

1. THE COURT’S ARTICULATED RELIANCE (Hr’g Tr. Feb. 28, 2025, pp. 291:26–292:7):

> “I’m not going to question a lawyer’s remarks regarding what they have and don’t have. They are an officer of the Court, and they are supposed to conduct themselves appropriately before the Court. If they are not, there are other sanctions that they could suffer here. So far I haven’t heard or seen anything on the part of the current law firm which tells me that they have conducted themselves improperly.”

2. THE RULINGS PROCURED FROM THAT RELIANCE: * MIL No. 1 denied (Jan. 27, p. 41:3–11) * 911 CDs excluded (Jan. 27, p. 38:22–25) * Continuance denied (Feb. 18, p. 181) * Burden-shift imposed (Feb. 28, p. 293:1–3)

3. THE ADMISSION THAT PROVED THE MISREPRESENTATION (RT 7, Apr 16, 2025, p. 213, ll. 13–15): > “Sure. They were provided by Dolan. He has had them for whatever, sure.”

§I.B — Procedural Request

Pursuant to Evidence Code section 452(d), Plaintiff Franciscus Dylan Rosario respectfully requests the Court take judicial notice of the court records identified in Section III below. These are records of California courts bearing directly on matters at issue on the pending Demurrer and Special Motion to Strike — including the procedural posture of the underlying tort action, rulings entered therein, and Defendants’ own filed appearances.

The purpose of this request is narrow: to place before the Court the undisputed court records necessary for the Court to resolve the legal propositions actually presented by the motions. Plaintiff does not ask the Court to take judicial notice of the truth of any hearsay within these records, only of their existence, filing, and legal effect.

A separate **Appendix — Index of Authorities with Pin-Cited Omissions** is attached for the

Court's convenience. That appendix collects the published California appellate opinions on which the parties' briefing turns, with pin-cites to the passages relevant to the motions. Judicial notice of published California appellate opinions is not required (they are binding authority the Court applies directly); the appendix is provided solely as a reference aid.

II. LEGAL STANDARD

Evidence Code section 452(d) authorizes judicial notice of "[r]ecords of any court of this state."

This request is directed to court records of the underlying tort action and related filings.

To the extent the Court elects to take judicial notice of the existence of any published California appellate opinion listed in the Appendix, the proper statutory hook is Evidence Code section 451(a) (decisional and statutory law of California, which is judicially noticed as a matter of law), not section 452(d).

III. COURT RECORDS FOR WHICH JUDICIAL NOTICE IS REQUESTED (EVID. CODE 452(D))

Item X: Certified Hr'g Tr. January 27, 2025

Document: Certified Hearing Transcript, January 27, 2025, Department 301, Rosario v. Abdelhalim, Case No. CGC-21-594102 (pp. 7–61).

Pincites relied upon: pp. 7 (MIL framing), 15–16 (continuance opposition), 17–22 (Plaintiff's "suppress" objection), 32 (FROG/SROG pin-cites), 34, 41 (MIL ruling), 42, 46, 49 (CCP § 473 denied), 55–60 (continuance denied).

Relevance: Establishes Plaintiff's contemporaneous preservation of the suppression theme and the procedural denials that foreclosed relief. Directly relevant to the intrinsic/extrinsic distinction and to accrual under CCP § 338(d).

Item Y: Certified Hr’g Tr. January 28, 2025

Document: Certified Hearing Transcript, January 28, 2025, Department 301, Rosario v. Abdelhalim, Case No. CGC-21-594102 (pp. 85–100).

Pincites relied upon: p. 90, ll. 17–33 (defense § 581(d) dismissal motion; Court’s “immediate reversal” remark).

Relevance: Establishes defense’s second-day dismissal attempt while Plaintiff was medically incapacitated.

Item Z: Certified Hr’g Tr. February 3, 2025

Document: Certified Hearing Transcript, February 3, 2025, Department 301, Rosario v. Abdelhalim, Case No. CGC-21-594102 (pp. 105–130).

Pincites relied upon: p. 109, ll. 21–23; p. 116, ll. 9–16; pp. 122–124 (renewed § 581(d) under submission; ex parte disclosure-order condition).

Relevance: Currently missing from the RJN package. This hearing is critical because it shows defense maintained termination leverage across **two hearings** during the preservation window.

Item AA: Certified Hr’g Tr. February 18, 2025

Document: Certified Hearing Transcript, February 18, 2025, Department 301, Rosario v. Abdelhalim, Case No. CGC-21-594102 (pp. 135–210).

Pincites relied upon: pp. 17 (concealed), 23 (stonewalling), 44–45 (going on the record), 139–141 (Jessup testimony; “news to me”), 145 (SFPD direct links), 147, 151, 164 (continuance requests), 181 (continuance denied; “since August” admission).

Relevance: The Feb. 18 hearing contains both Position A (p. 141) and Position B (p. 181) in the same transcript, by the same attorney—establishing scienter for judicial estoppel and the Flatley illegal-conduct exception.

Item BB: Certified Hr’g Tr. February 28, 2025

Document: Certified Hearing Transcript, February 28, 2025, Department 301, Rosario v. Abdelhalim, Case No. CGC-21-594102 (pp. 290–310).

Pincites relied upon: pp. 290–294 (officer-of-court ruling at p. 291, ll. 26–28 and p. 292, ll. 1–7; burden-shift ruling at p. 293, ll. 1–3).

Relevance: The February 28, 2025 ruling is a Tier-1 “smoking gun” excerpt. The Court expressly stated: (i) “I’m not going to question a lawyer’s remarks regarding what they have and don’t have” (p. 291:26–28); (ii) “They are an officer of the Court, and they are supposed to conduct themselves appropriately before the Court” (p. 292:1–4); and (iii) imposed a burden-shift on Plaintiff: “it’s required of you to send the documents over. Otherwise, I won’t allow them in.” (p. 293:1–3). These statements memorialize the tribunal’s institutional reliance on defense candor — reliance that, as demonstrated by the April 16, 2025 “provided by Dolan” admission (RT 7, p. 213, ll. 13–15), was misplaced.

IMPORTANT — Disclaimer under Evid. Code § 452(d): Notice is requested only for the making of the statements by the Court (a court-record fact), not for the truth of any underlying assertion about defense counsel’s conduct — that truth question is the very issue this equitable action adjudicates.

Exhibit 1: Reliance-and-Rulings Chain Exhibit

Document: The “Reliance Chain Exhibit” (see 801-DEFENSE-COURT/DRAFT/13-RELIANCE-CHAIN-EXHIBIT.md) documenting the four-hearing reliance arc and the structural rulings procured. **Relevance:** Establishes the “fruit” of the misrepresentation. Directly relevant to the “Reliance → Rulings → Admission → Falsity” sequence.

Exhibit 2: Plaintiff Preservation Chronology

Document: The “Plaintiff Preservation Chronology” (see 801-DEFENSE-COURT/DRAFT/14-PLAINTIFF-PRESERVATION-CHRONOLOGY.md). **Relevance:** Proves Plaintiff objected contemporaneously to every misrepresentation, preempting “sleeping on rights” arguments.

Exhibit 3: Judicial Admission Matrix

Document: The “Judicial Admission Matrix” (see 801-DEFENSE-COURT/DRAFT/11-JUDICIAL-ADMISSION-MATRIX.md). **Relevance:** Makes the inconsistency → reliance → ruling → admission chain visible in a single matrix row.

Exhibit 4: Brief Re: Fraud on the Court

Document: Plaintiff’s Brief Re: Fraud on the Court (801-DEFENSE-COURT/DRAFT/15-BRIEF-RE-FRAUD-ON-THE-COURT.md). **Relevance:** Comprehensive doctrinal and record analysis of the 900-day deception.

Exhibit 5: Fraud-on-Court Roadmap (Bench Handout)

Document: The one-page roadmap (801-DEFENSE-COURT/DRAFT/16-FRAUD-ON-COURT-ROADMAP.md). **Relevance:** Four-quadrant summary for use at the bench.

Exhibit 6: Substitution of Attorney — Underlying Tort Action

Document: Substitution of Attorney filed May 4, 2023. **Relevance:** Establishes the file-transfer event and substitution of PSA for CSK.

Exhibit 7: Minute Orders — Continuance Denials and Evidentiary Rulings

Document: Filed minute orders from the underlying tort action. **Relevance:** Direct evidence of the procedural consequences of the fraud.

Exhibit 8: Notice of Appeal — Underlying Tort Action

Document: Notice of Appeal filed in the underlying action. **Relevance:** Establishes the distinct procedural path of the underlying liability.

IV. AUTHORITIES SUMMARY (REFERENCE ONLY — SEE APPENDIX)

The following summarizes, for the Court’s convenience, the authorities briefed in the oppositions and the pin-cited passages on which Plaintiff relies as compared with the passages Defendants quote. The Appendix contains full pin-cited opinions.

- **Park v. Bd. of Trustees (2017) 2 Cal.5th 1057** — Defendants cite p. 1064 (quoted phrase); Plaintiff cites pp. 1062–1064. **Legal proposition:** Step-one gravamen filter; isolating injury-producing act.

- **Flatley v. Mauro (2006) 39 Cal.4th 299** — Defendants cite p. 322 (finality); Plaintiff cites pp. 320–325. **Legal proposition:** Illegal-conduct exception to Anti-SLAPP.
- **Moradi-Shalal v. Fireman’s Fund (1988) 46 Cal.3d 287** — Defendants [implicit immunity]; Plaintiff cites p. 305. **Legal proposition:** Preservation of common law fraud against insurers.
- **Action Apartment Assn. v. City of Santa Monica (2007) 41 Cal.4th 1232** — Defendants [not cited]; Plaintiff cites pp. 1242–1247. **Legal proposition:** Extrinsic fraud boundary of Civ. Code § 47(b).
- **Kimmel v. Goland (1990) 51 Cal.3d 202** — Defendants [not cited]; Plaintiff passim. **Legal proposition:** Communications vs. noncommunicative conduct.
- **Crowley v. Katleman (1994) 8 Cal.4th 666** — Defendants [not cited]; Plaintiff passim. **Legal proposition:** Primary rights analysis for collateral estoppel.

V. CONCLUSION

Plaintiff respectfully requests the Court take judicial notice under Evidence Code section 452(d) of the court records identified in Section III, and consult the attached Appendix as a reference aid for the published authorities addressed in the oppositions.

DATED: April 16, 2026

Respectfully submitted,

FRANCISCUS DYLAN ROSARIO

EXHIBITS (SECTION III — COURT RECORDS)

Exhibit 1: Reliance-and-Rulings Chain Exhibit (13-RELIANCE-CHAIN-EXHIBIT.md) **Exhibit 2:** Plaintiff Preservation Chronology (14-PLAINTIFF-PRESERVATION-CHRONOLOGY.md) **Exhibit 3:** Judicial Admission Matrix (11-JUDICIAL-ADMISSION-MATRIX.md) **Exhibit 4:** Brief Re: Fraud on the Court (15-BRIEF-RE-FRAUD-ON-THE-COURT.md) **Exhibit 5:** Fraud-on-Court Roadmap (16-FRAUD-ON-COURT-ROADMAP.md) **Exhibit 6:** Substitution of Attorney

(May 4, 2023) **Exhibit 7:** Minute Orders (Underlying Action) **Exhibit 8:** Notice of Appeal (Underlying Action)

APPENDIX — INDEX OF AUTHORITIES WITH PIN-CITED OMISSIONS

Reference aid only. Judicial notice of published California appellate opinions is unnecessary; the Court applies them as binding or persuasive authority directly. If the Court elects to take notice of the existence of any opinion below, the proper hook is Evid. Code § 451(a).

This Appendix collects, for each authority briefed by Defendants, (a) the page Defendants cite, (b) the page Plaintiff cites, and (c) the legal proposition governing the pending motions. Plaintiff notes where Defendants’ briefing quotes a phrase without reaching the controlling limitation on the same page or in the surrounding pages; the Court can of course consult the full opinions.

Tab 1: **Park v. Board of Trustees of California State University (2017) 2 Cal.5th 1057**

- **Page Defendants Cite:** p. 1064 (quoted phrase “speech or petitioning activity itself”) — Anti-SLAPP MPA, p. 13, ll. 20-22.
- **Page Plaintiff Cites:** pp. 1062-1064 (gravamen filter; step-one framework).
- **Proposition:** Step-one of the Anti-SLAPP analysis requires isolating the injury-producing act; the cause of action itself must be based on protected activity.
- **Key language:** 2 Cal.5th at 1062-1063 (“the critical point is whether the plaintiff’s cause of action itself was based on an act in furtherance of the defendant’s right of petition or free speech”); 2 Cal.5th at 1064 (isolating the injury-producing act).

Tab 2: **Flatley v. Mauro (2006) 39 Cal.4th 299**

- **Page Defendants Cite:** p. 322 (finality paragraph) — Anti-SLAPP MPA, p. 9, ll. 17-21.
- **Page Plaintiff Cites:** pp. 320-325 (illegal-conduct exception).
- **Proposition:** Petitioning activity that is illegal as a matter of law loses Anti-SLAPP protection.

Tab 3: Moradi-Shalal v. Fireman’s Fund Ins. Companies (1988) 46 Cal.3d 287

- **Page Defendants Cite:** [Implicit immunity framing].
- **Page Plaintiff Cites:** p. 305.
- **Proposition:** Common law fraud causes of action against insurers are preserved, notwithstanding abrogation of private rights of action under Ins. Code § 790.03(h).

Tab 4: Action Apartment Assn., Inc. v. City of Santa Monica (2007) 41 Cal.4th 1232

- **Page Defendants Cite:** [Not cited].
- **Page Plaintiff Cites:** pp. 1242-1247.
- **Proposition:** Extrinsic fraud exception to Civ. Code § 47(b); discussion of Silberg, Albertson, and the boundaries of the litigation privilege in the fraud context.

Tab 5: Kimmel v. Goland (1990) 51 Cal.3d 202

- **Page Defendants Cite:** [Not cited].
- **Page Plaintiff Cites:** passim.
- **Proposition:** Civ. Code § 47(b) protects communications, not noncommunicative conduct during litigation.

Tab 6: Crowley v. Katleman (1994) 8 Cal.4th 666

- **Page Defendants Cite:** [Not cited].
- **Page Plaintiff Cites:** passim.
- **Proposition:** Collateral estoppel requires primary rights analysis; definitional collateral-attack cases (F.E.V., Rico, Wouldridge, Singh) do not substitute for Crowley mapping.

End of Appendix.

Dated: April 18, 2026



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